

LORI SKIPPER
900 9th Ave East
Palmetto, FL 34221

IN THE COUNTY COURT OF THE 12TH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

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CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC

ET AL

Plaintiff AND CROSS COMPLAINT
DEFENDANT,

vs.

LORI SKIPPER,

DEFENDANT, CROSS COMPLAINT
PLAINTIFF

CASE NUMBER: 2021CA4553

MOTION TO AMEND DEFENDANT'S ANSWER AND CROSS COMPLAINT

BACKGROUND

1. Although the Plaintiff claims to have filed their case on November 4, 2021, the Defendant Lori Skipper was not provided proper service until after November 4, 2021, which as the Plaintiff claims does contain unsubstantiated allegations involving various breaches of contract, duty and other claims.
2. The Plaintiff makes claims in their complaint about destruction of property (an employment application only) and use of confidential resident information (consisting of

resident phone numbers on her own, privately owned cell phone) all in violation of a non-produced employment agreement with Colonial Manor.

3. The Defendant Lori Skipper did indeed on November 23, 2021 did in fact file an initial answer to the Plaintiff's complaint on or about November 23, 2021.
4. The Defendant's answer which includes a counter claim with substantial supporting factual statements which cannot be excused by the Plaintiff. The Defendant's Counterclaim should not be dismissed because it meets criteria establishing points of law and statute that must be argued before a Court of competent jurisdiction as in alignment with Rule 1.140(b).

ARGUMENT

I. Standard of Review

"Rule 1.140(b) requires that "the substantial matters of law intended to be argued shall be stated specifically and with particularity." Fla. R. Civ. P. 1.140(b). In other words, a motion simply stating that a complaint fails to state a cause of action likely will not be sufficient. See, e.g., *Liton Lighting v. Platinum Television Group, Inc.*, 2 So. 3d 366, 367 (Fla. 4th DCA 2008) (trial judge may not dismiss a cause of action on grounds not pleaded because the claim is being dismissed without notice and the opportunity to be heard)."

While claiming deficiency, the Plaintiff has admitted that the Defendant has answered the Plaintiff's complaint citing statute and relief requests based on those statutes, yet failed to recognize the right to Amend, which has been filed via Motion and Amended Complaint as well as seemingly is asking the Court to overturn years of statutory Court procedures.

The Defendant in her Counter Claim properly identified herself and has filed an amendment to her answer and counter complaint which has made corrected simple errors in title of the Cross Complaint Defendant. She has no idea who else may join in this case, however she has

simply left open the door for other residents of Colonial Manor to join in, which if done in error can simply be construed as a reasonable misunderstanding.

“Somero v. Hendry General Hospital, 467 So.2d 1103, 1106 (Fla. 4th DCA 1985) (“[W]here inaction results from clerical or secretarial error, reasonable misunderstanding, a system gone awry or any other of the foibles to which human nature is heir, then upon timely application accompanied by a reasonable and credible explanation the matter should be permitted to be heard on the merits.”).”

While making assertions of deficiencies in the Defendant’s answer and Counter Complaint, again the Plaintiff has failed to cite compliance with the pleading standards in Rules 1.110 (“short and plain statement of ultimate facts”) and 1.120 (special matters). The movant has a heavy burden. In ruling on a motion to dismiss for failure to state a cause of action, the trial court must consider only the “four corners of the complaint” and must assume that all allegations in the complaint are true.

See *Carmona v. McKinley, Ittersagen, Gunderson & Berntsson, P.A.*, 952 So. 2d 1273, 1275 (Fla. 2d DCA 2007) (citations omitted). Moreover, under the Florida rule, all reasonable inferences must be construed in favor of the non-moving party, and a complaint should not be dismissed unless the movant can establish beyond any doubt that the claimant could prove no set of facts whatever in support of his claim. See *Meadows Cmty. Ass’n, Inc. v. Russell-Tutty*, 928 So. 2d 1276, 1280 (Fla. 2d DCA 2006). If a defendant raises an affirmative defense in a motion to dismiss, the defense must appear on the face of the complaint. See Fla. R. Civ. P. 1.110(d). The plaintiff does not have the burden of anticipating a defense and then overcoming it in his initial pleading. See *Legrande v. Emmanuel*, 889 So. 2d 991 (Fla. 3d DCA 2004).

If the trial court grants a motion to dismiss, the party ordinarily must be given leave to amend the complaint. See *Trotter v. Ford Motor Credit Co.*, 868 So. 2d 593 (Fla. 2d DCA 2004). Indeed, a party has an absolute right to amend once before a responsive pleading is filed. A motion to dismiss is not a responsive pleading, and so a party can amend an initial complaint at any point prior to the trial court’s ruling on a motion to dismiss. A judge’s discretion to deny amendment of a complaint arises only after the defendant files an answer or if the answering party already has exercised the right to amend once. *Boca Burger, Inc. v. Forum*, 912 So. 2d 561, 567 (Fla. 2005).

The Florida Rules of Civil Procedure expressly state, "these rules shall be construed to secure the just, speedy, and inexpensive determination of every action." Fla. R. Civ. P. 1.010. Against that backdrop, undersigned DEFENDANT is surprised by the tone of Plaintiffs' MOTION TO DISMISS. Plaintiffs seems to righteously argue that they may hide behind a vague pleading when pleading ultimate facts will doom their lawsuit. Seemingly, according to Plaintiffs' Motion, in a lawsuit this is simply how the game is played. By analogy, the Court can see the folly of Plaintiff's argument.

If Plaintiffs are allowed to continue with their vague pleading and motion for Dismissal based as a matter of law, they would be asking the Court to reinterpret several already defined matters of law including Gender Discrimination, which is a proven claim, providing false and incorrect statements to the Court, and coming to this proceeding without clean hands. Clearly, Plaintiffs' approach would not promote judicial economy.

WHEREFORE, Defendant, Lori Skipper respectfully requests that this Court dismiss Plaintiffs' Motion to Dismiss and Grant this motion to Amend her previous answer and counter complaint, as well as applying sanctions against the Plaintiff, their Attorney and agents who were involved with their frivolous claims, and grant Defendant all other relief which the Court deems proper and equitable.

Respectfully Submitted this 27 day of December, 2021 by:


Lori Skipper
Defendant

NOTICE OF SERVICE

I PLACED A COPY OF THIS DOCUMENT (ANSWER TO PLAINTIFF'S MOTION TO DISMISS DEFENDANT'S ANSWER AND CROSS COMPLAINT; AMENDED ANSWERS AND COUNTER COMPLAINT; MOTION TO AMEND) WAS SERVED ON THE PLAINTIFF VIA US MAIL WITH POSTAGE ATTACHED ON THE 27ND DAY OF DECEMBER, 2021 AND ADDRESSED TO THE FOLLOWING:

CHRISTOPHER B. LUNNY (FBN: 0008982)

E-mail: clunny@radeylaw.com

Secondary E-mail: sschulz@radeylaw.com

JORDANN WILHELM (FBN: 1003182)

E-mail: jwilhelm@radeylaw.com

Secondary E-mail: sschulz@radeylaw.com

Radey Law Firm

301 South Bronough Street

Suite 200

Tallahassee, Florida 32301

Telephone: (850) 425-6654

Facsimile: (850) 425-6694

*Counsel for Plaintiff,
Colonial Manor MHC Holdings, LLC*



George E. Yeske
702-466-3954